

# SENATE . . . . . No. 1459

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## The Commonwealth of Massachusetts

PRESENTED BY:

***Mark C. Montigny***

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to dangerous dogs.

PETITION OF:

| NAME:                   | DISTRICT/ADDRESS:                  |                  |
|-------------------------|------------------------------------|------------------|
| <i>Mark C. Montigny</i> | <i>Second Bristol and Plymouth</i> |                  |
| <i>Mark D. Sylvia</i>   | <i>10th Bristol</i>                |                  |
| <i>Michael O. Moore</i> | <i>Second Worcester</i>            | <i>2/3/2025</i>  |
| <i>James K. Hawkins</i> | <i>2nd Bristol</i>                 | <i>2/7/2025</i>  |
| <i>Vanna Howard</i>     | <i>17th Middlesex</i>              | <i>2/14/2025</i> |
| <i>Adam J. Scanlon</i>  | <i>14th Bristol</i>                | <i>3/4/2025</i>  |

# SENATE . . . . . No. 1459

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By Mr. Montigny, a petition (accompanied by bill, Senate, No. 1459) of Mark C. Montigny, Mark D. Sylvia, Michael O. Moore, James K. Hawkins and other members of the General Court for legislation to impound dangerous dogs pending a public hearing. Municipalities and Regional Government.

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
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An Act relative to dangerous dogs.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Section 157 of chapter 140 of the General Laws, as appearing in the 2022  
2   Official Edition, is hereby amended by inserting in subsection (a), in line 26, the following  
3   paragraph:-

4           If a hearing authority, as defined in section 136A of this chapter, seeks that a dog be  
5   impounded pending the public hearing following: (i) a complaint for a dangerous dog or (ii) a  
6   notice of violation that a dog is being kept in violation of this section or in violation of an order  
7   issued under this section by a hearing authority or a court, the hearing authority shall file a  
8   petition in the district court to request an order of impoundment at a facility the municipality uses  
9   to shelter animals. Should the hearing authority seek to impound any dog, who has bitten and  
10   broken the skin of a human or animal, for any length of time beyond any state mandated  
11   quarantine period, an order of impoundment must be requested. A municipality shall not incur  
12   liability for failure to request impoundment of a dog under this subsection. A justice of a district

13 court, upon probable cause to believe that a dog is a dangerous dog or that a dog is being kept in  
14 violation of this section or in violation of an order issued under this section by a hearing  
15 authority or a court, may issue an order:

16 (i) of restraint;

17 (ii) of confinement of the dog as considered necessary for the safety of other animals and  
18 the public; provided, however, that if an order of confinement is issued, the person to whom the  
19 order is issued shall confine the dog in accordance with clause (ii) of subsection (d);

20 (iii) of impoundment in a humane place of detention that the municipality uses to shelter  
21 animals; or

22 (iv) any other action as the court deems necessary to protect other animals and the public  
23 from the dog.

24 SECTION 2. Section 157 of chapter 140 of the General Laws is hereby further amended  
25 by inserting, in line 27, after the word "complaint" the following words:- and of any violations of  
26 orders issued under this section

27 SECTION 3. Section 157 of chapter 140 of the General Laws is hereby further amended  
28 by striking out the words "or a dangerous dog" and inserting in place thereof the following  
29 words:- , a dangerous dog or whether a violation of an order issued under this section has been  
30 found

31 SECTION 4. Section 157 of chapter 140 of the General Laws hereby further amended in  
32 subsection (a)(4), in line 29, by inserting after the first sentence of the second paragraph, the  
33 following 3 sentences:-

34 If the biting dog has broken skin of a human or domestic animal, then an animal control  
35 officer, police officer, or hearing authority may order the dog, while outside of an enclosed  
36 structure, be leashed and wear a humane basket or basket-type muzzle until the hearing. The  
37 hearing authority shall hold the public hearing within 30 days of the complaint after adequate  
38 notice, unless continued by agreement of both parties. Failure to provide such notice shall result  
39 in a dismissal with prejudice.

40 SECTION 5. Section 157 of chapter 140 of the General Laws is hereby further amended  
41 by inserting, in line 30, after the word "hearing," the following words:- for a complaint, which  
42 shall be limited to the issues in the hearing notice

43 SECTION 6. Section 157 of chapter 140 of the General Laws is hereby further amended  
44 by inserting at the end of the second paragraph, in line 35, following sentence:- Based on  
45 credible evidence and testimony presented at the public hearing for a violation, which shall be  
46 limited to the issues in the violation notice, the hearing authority shall: (i) dismiss the violation;  
47 or (ii) make a finding that the violation has occurred. Following a finding that a violation has  
48 occurred, the hearing authority may order additional requirements pursuant to subsections (b)  
49 and (c) of this section.

50 SECTION 7. Subsection (c) of section 157 of chapter 140 of the General Laws is hereby  
51 further amended by striking out the entirety of subsection (c)(ii) and inserting in place thereof the  
52 following subsection-

53 (ii) that the dog be confined to the premises of the keeper of the dog; provided, however,  
54 that "confined" shall mean securely confined indoors or confined outdoors; a dog confined  
55 outdoors must be kept in a fenced-in area that includes an egress to the indoors and a locked gate

and is surrounded with at least a 6-foot high fence with a privacy barrier, or in a securely enclosed and locked pen; the owner or keeper shall ensure that the dog cannot escape by digging and that no natural or artificial items near the edges of the fenced-in area or locked pen would permit a dog to jump or climb over the fence or pen; the dog must be able to move freely and the dog's food must be able to be placed eight feet from where the dog can urinate or defecate, provided such excretions shall be removed daily; and provided further that within the confines of such pen or dog run, a dog house or proper shelter from the elements shall be provided to protect the dog;

SECTION 8. Section 157 of chapter 140 of the General Laws is hereby further amended by inserting in subsection (c)(iii), in line 58, after the word "muzzle" the following words:- with a basket or basket-type muzzle

SECTION 9. Section 157 of chapter 140 of the General Laws is hereby further amended by striking, in line 82, the word "or" and inserting in place thereof the following:-

(vii) that the owner or keeper of the dog consults with a veterinarian, behaviorist, or trainer to develop a public safety and behavior modification plan that exclusively employs evidence-based training techniques that do not result in pain, discomfort, fear or anxiety; provided that electric, prong or choke collars shall not be used as part of this modification plan; further all professionals involved in said modification plan shall be educated in and employ methods that adhere to the principles of the American Veterinary Society of Animal Behavior and the American College of Veterinary Behaviorists; or

SECTION 10. Section 157 of chapter 140 of the General Laws is hereby amended by striking out in subsection (c), in line 83, the number “(vii)” and inserting in place thereof the following number:- (viii)

SECTION 11. Section 157 of chapter 140 of the General Laws is hereby further amended by inserting, in line 84, before the word “No”, the following figure:- (d)

SECTION 12. Section 157 of chapter 140 of the General Laws is hereby further amended by inserting, in line 85, after the word "removed" the following words:- or excluded

SECTION 13. Section 157 of chapter 140 of the General Laws is hereby further amended by inserting, in line 88, the following subsection:- (e) Once the complaint has been filed and the owner or keeper notified, the owner or keeper shall not transfer ownership of the dog.

SECTION 14. Section 157 of chapter 140 of the General Laws is hereby further amended by striking, in line 88, the figure “(d)” and inserting in place thereof the following figure:- (f)

SECTION 15. Section 157 of chapter 140 of the General Laws is hereby further amended by striking, in line 88, the word “an” and inserting in place thereof the following words:- receipt of a written

SECTION 16. Section 157 of chapter 140 of the General Laws is hereby further amended by striking, in line 89, the word "inclusive" and by inserting the following words:- inclusive, or (j)

SECTION 17. Section 157 of chapter 140 of the General Laws is hereby further amended by striking, in line 89, the word “a” and inserting in place thereof the following word:- the

SECTION 18. Section 157 of chapter 140 of the General Laws is hereby further amended by inserting, in line 89, after the word "dog" the following words:- or the complainant

SECTION 19. Section 157 of chapter 140 of the General Laws is hereby further amended by inserting, in line 95, after the word "affirm" the following words:- or otherwise resolve

SECTION 20. Section 157 of chapter 140 of the General Laws is hereby further amended by striking, in line 97, the word "A" and inserting in place thereof the following word:- Either

SECTION 21. Section 157 of chapter 140 of the General Laws is hereby further amended by striking, in line 99, the word "court" and inserting in place thereof the following:- court, provided such request must be made within 10 days after receipt of the written decision of the magistrate

SECTION 22. Section 157 of chapter 140 of the General Laws is hereby further amended by striking, in line 100, the figure "(e)" and inserting in place thereof the following figure:- (g)

SECTION 23. Section 157 of chapter 140 of the General Laws is hereby further amended by striking, in line 100, the number "(1)".

SECTION 24. Section 157 of chapter 140 of the General Laws is hereby further amended by striking, in line 100, the phrase "an owner or keeper" and inserting in place thereof the following words:- either party

SECTION 25. Section 157 of chapter 140 of the General Laws is hereby further amended by striking, in line 101, the figure "(d)" and inserting in place thereof the following figure: - (f)

SECTION 26. Section 157 of chapter 140 of the General Laws is hereby further amended by striking, in line 106, the number "(2)".

117           SECTION 27. Section 157 of chapter 140 of the General Laws is hereby further amended  
118 by striking, in line 118, the figure “(f)” and inserting in place thereof the following figure: - (h)

119           SECTION 28. Section 157 of chapter 140 of the General Laws is hereby further amended  
120 by striking, in line 119, the figure “(d)” and inserting in place thereof the following figure: - (f)

121           SECTION 29. Section 157 of chapter 140 of the General Laws is hereby further amended  
122 by inserting, in line 124, after the word "parties" the following words:- except for the provisions  
123 outlined in section 4 of chapter 249

124           SECTION 30. Section 157 of chapter 140 of the General Laws is hereby further amended  
125 by striking, in line 125, the figure “(g)” and inserting in place thereof the following figure:- (i)

126           SECTION 31. Section 157 of chapter 140 of the General Laws is hereby further amended  
127 by striking, in line 144, the figure “(h)” and inserting in place thereof the following figure: - (j)

128           SECTION 32. Section 157 of chapter 140 of the General Laws is hereby further amended  
129 by inserting, in line 145, after the word "section," the following words:- after obtaining a court  
130 order,

131           SECTION 33. Section 157 of chapter 140 of the General Laws is hereby further amended  
132 by inserting, in line 146, after the word "officer" the following words:- pursuant to section 158 of  
133 chapter 140

134           SECTION 34. Section 157 of chapter 140 of the General Laws is hereby further amended  
135 by inserting, in line 146, after the word "the" the following words:- owner or

136           SECTION 35. Section 157 of chapter 140 of the General Laws is hereby further amended  
137 by inserting, in line 149, after the word "seizure" the following words:- in writing



138           SECTION 36. Section 157 of chapter 140 of the General Laws is hereby further amended  
139 by inserting, in line 149, after the word "such" the following words:- written

140           SECTION 37. Section 157 of chapter 140 of the General Laws is hereby further amended  
141 by inserting, in line 150, after the word "authority" the following words:- for a public hearing

142           SECTION 38. Section 157 of chapter 140 of the General Laws is hereby further amended  
143 by striking, in line 151, the words "shall" and inserting in place thereof the following words:-  
144 may

145           SECTION 39. Section 157 of chapter 140 of the General Laws is hereby further amended  
146 by striking, in line 152, the words "in the person's possession" and inserting in place thereof the  
147 following words:- of the dog that is the subject of the violation

148           SECTION 40. Section 157 of chapter 140 of the General Laws is hereby further amended  
149 by striking, in line 153, the word "shall" and inserting in place thereof the following word:- may

150           SECTION 41. Section 157 of chapter 140 of the General Laws is hereby further amended  
151 in subsection (h) by striking the last sentence.

152           SECTION 42. Section 157 of chapter 140 of the General Laws is hereby further amended  
153 by striking subsection (i).

154           SECTION 43. Section 157 of chapter 140 of the General Laws is hereby further amended  
155 by inserting the following new subsection:-

156           (k) A hearing authority that determines that a dog is dangerous or a nuisance or that a dog  
157 owner or keeper has violated an order issued under this section shall report such violations to the

158 issuing licensing authority within 30 days. Orders issued by a hearing authority shall be valid  
159 throughout the commonwealth unless overturned under subsection (f) or (h).